

writing, spelling, grammar, vocabulary, math, science, social studies, and geography. In so doing, both were like any public school teacher in California, subject to the same statewide curriculum guidelines. 911 F. 3d, at 606. In other words, both Biel and Morrissey-Berru had almost exclusively secular duties, making it especially improper to deprive them of all legal protection when their employers have not offered any religious reason for the alleged discrimination.

Nor is it dispositive that both teachers prayed with their students. Biel did not lead devotionals in her classroom, did not teach prayers, and had a minor role in monitoring student behavior during a once-a-month mass. App. 79, 252–253, 256–259. Morrissey-Berru did lead classroom prayers, bring her students to a cathedral once a year, direct the school Easter play, and sign a contract directing her to “assist with Liturgy Planning.” App. to Pet. for Cert. in No. 19–267, at 42a, 68a–69a, 95a–96a. But these occasional tasks should not trigger as a matter of law the ministerial exception. Morrissey-Berru did not lead mass, deliver sermons, or select hymns. *Id.*, at 89a. And unlike the teacher in *Hosanna-Tabor*, there is no evidence that Morrissey-Berru led devotional exercises. App. to Pet. for Cert. in No. 19–267, at 89a. Her limited religious role does not fit *Hosanna-Tabor*’s description of a “minister to the faithful.” 565 U. S., at 189.

Nevertheless, the Court insists that the teachers are ministers because “implicit in our decision in *Hosanna-Tabor* was a recognition that educating young people in their faith, inculcating its teachings, and training them to live their faith are responsibilities that lie at the very core of the mission of a private religious school.” *Ante*, at 753–754. But teaching religion in school alone cannot dictate ministerial status. If it did, then *Hosanna-Tabor* wasted precious pages discussing titles, training, and other objective indicia to examine whether Cheryl Perich was a minister. Not surprisingly, the Government made this same point earlier in Biel’s case: “If teaching religion to elementary school students for a half-

SOTOMAYOR, J., dissenting

hour each day, praying with them daily, and accompanying them to weekly or monthly religious services were sufficient to establish a teacher as a minister of the church within the meaning of the ministerial exception, the Supreme Court would have had no need for most of its discussion in *Hosanna-Tabor*.” Brief for EEOC as *Amicus Curiae* in No. 17–55180 (CA9), p. 21. Rather, “the Court made clear in *Hosanna-Tabor* that context matters.” *Ibid*. Indeed.⁸

Were there any doubt left about the proper result here, recall that neither school has shown that it required its religion teachers to be Catholic. The Court does not explain how the schools here can show, or have shown, that a non-Catholic “personif[ies]” Catholicism or leads the faith. *Hosanna-Tabor*, 565 U. S., at 188. Instead, the Court remarks that a “rigid” coreligionist requirement might “not always be easy” to apply to faiths like Judaism or variations of Protestantism. *Ante*, at 761. Perhaps. But that has nothing to do with Catholicism.

Pause, for a moment, on the Court’s conclusion: Even if the teachers were not Catholic, and even if they were forbidden to participate in the church’s sacramental worship, they would nonetheless be “ministers” of the Catholic faith simply because of their supervisory role over students in a religious school. That stretches the law and logic past their breaking points. (Indeed, it is ironic that Our Lady of Guadalupe School seeks complete immunity for age discrimination when its teacher handbook promised not to discriminate on that basis.) As the Government once put it, even when a school has a “pervasively religious atmosphere,” its faculty are unlikely ministers when “there is no requirement that its teachers even be members of [its] religious denomination.” Brief

⁸ Although the Government supported Biel below, it has since switched sides without explanation. Odder still, the Government’s brief to this Court faults the Ninth Circuit for having embraced the Government’s prior views. Compare Brief for EEOC as *Amicus Curiae* in No. 17–55180 (CA9), p. 21, with Brief for United States as *Amicus Curiae* 16–17.

for Appellee in No. 84–2779 (CA9 1986), pp. 11, 29, n. 17. It is hard to imagine a more concrete example than these cases.

* * *

The Court’s conclusion portends grave consequences. As the Government (arguing for Biel at the time) explained to the Ninth Circuit, “thousands of Catholic teachers” may lose employment-law protections because of today’s outcome. Recording of Oral Arg. in No. 17–55180 (July 11, 2018), at 25:15–25:30, https://www.ca9.uscourts.gov/media/view_video.php?pk_vid=0000014022. Other sources tally over a hundred thousand secular teachers whose rights are at risk. See, *e. g.*, Brief for Virginia et al. as *Amici Curiae* 33, n. 25. And that says nothing of the rights of countless coaches, camp counselors, nurses, social-service workers, in-house lawyers, media-relations personnel, and many others who work for religious institutions. All these employees could be subject to discrimination for reasons completely irrelevant to their employers’ religious tenets.

In expanding the ministerial exception far beyond its historic narrowness, the Court overrides Congress’ carefully tailored exceptions for religious employers. Little if nothing appears left of the statutory exemptions after today’s constitutional broadside. So long as the employer determines that an employee’s “duties” are “vital” to “carrying out the mission of the church,” *ante*, at 756–757, then today’s laissez-faire analysis appears to allow that employer to make employment decisions because of a person’s skin color, age, disability, sex, or any other protected trait for reasons having nothing to do with religion.

This sweeping result is profoundly unfair. The Court is not only wrong on the facts, but its error also risks upending anti-discrimination protections for many employees of religious entities. Recently, this Court has lamented a perceived “discrimination against religio[n].” *E. g.*, *Espinoza v. Montana Dept. of Revenue*, 591 U. S. 464, 478 (2020). Yet here it swings

SOTOMAYOR, J., dissenting

the pendulum in the extreme opposite direction, permitting religious entities to discriminate widely and with impunity for reasons wholly divorced from religious beliefs. The inherent injustice in the Court's conclusion will be impossible to ignore for long, particularly in a pluralistic society like ours. One must hope that a decision deft enough to remold *Hosanna-Tabor* to fit the result reached today reflects the Court's capacity to cabin the consequences tomorrow.

I respectfully dissent.

Page Proof Pending Publication

Syllabus

TRUMP *v.* VANCE, DISTRICT ATTORNEY OF THE
COUNTY OF NEW YORK, ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE SECOND CIRCUIT

No. 19–635. Argued May 12, 2020—Decided July 9, 2020

In 2019, the New York County District Attorney’s Office—acting on behalf of a grand jury—served a subpoena *duces tecum* on Mazars USA, LLP, the personal accounting firm of President Donald J. Trump, for financial records relating to the President and his businesses. The President, acting in his personal capacity, sued the district attorney and Mazars in Federal District Court to enjoin enforcement of the subpoena, arguing that a sitting President enjoys absolute immunity from state criminal process under Article II and the Supremacy Clause. The District Court dismissed the case under the abstention doctrine of *Younger v. Harris*, 401 U. S. 37, and, in the alternative, held that the President was not entitled to injunctive relief. The Second Circuit rejected the District Court’s dismissal under *Younger* but agreed with the court’s denial of injunctive relief, concluding that presidential immunity did not bar enforcement of the subpoena and rejecting the argument of the United States as *amicus curiae* that a state grand jury subpoena seeking the President’s documents must satisfy a heightened showing of need.

Held: Article II and the Supremacy Clause do not categorically preclude, or require a heightened standard for, the issuance of a state criminal subpoena to a sitting President. Pp. 793–811.

(a) In 1807, John Marshall, presiding as Circuit Justice for Virginia over the treason trial of Aaron Burr, granted Burr’s motion for a subpoena *duces tecum* directed at President Jefferson. In rejecting the prosecution’s argument that a President was not subject to such a subpoena, Marshall held that a President does not “stand exempt” from the Sixth Amendment’s guarantee that the accused have compulsory process for obtaining witnesses for their defense. *United States v. Burr*, 25 F. Cas. 30, 33–34. The sole argument for an exemption was that a President’s “duties as chief magistrate demand his whole time for national objects.” *Id.*, at 34. But, in Marshall’s assessment, those duties were “not unremitting,” *ibid.*, and any conflict could be addressed by the court upon return of the subpoena. Marshall also concluded that the Sixth Amendment’s guarantee extended to the production of papers. “[T]he propriety of introducing any papers,” he explained, would “depend on the character of the paper, not the character of the person who holds it,” and would have “due consideration” upon the return of the

Syllabus

subpoena. *Id.*, at 34, 37. Jefferson agreed to furnish whatever justice required, subject to the prerogative to decide whether particular executive communications should be withheld.

In the two centuries since *Burr*, successive Presidents from Monroe to Clinton have accepted Marshall's ruling that the Chief Executive is subject to subpoena and have uniformly agreed to testify when called in criminal proceedings.

In 1974, the question whether to compel the disclosure of official communications over the President's objection came to a head when the Watergate Special Prosecutor secured a subpoena *duces tecum* directing President Nixon to produce, among other things, tape recordings of Oval Office meetings. This Court rejected Nixon's claim of an absolute privilege of confidentiality for all presidential communications. Recognizing that "compulsory process" was imperative for both the prosecution and the defense, the Court held that the President's "generalized assertion of privilege must yield to the demonstrated, specific need for evidence in a pending criminal trial." *United States v. Nixon*, 418 U. S. 683, 713. President Nixon dutifully released the tapes. Pp. 793–799.

(b) This history all involved *federal* criminal proceedings. Here, the President claims that the Supremacy Clause gives a sitting President absolute immunity from *state* criminal subpoenas because compliance with such subpoenas would categorically impair the performance of his Article II functions. The Solicitor General, arguing on behalf of the United States, claims that a state grand jury subpoena for a sitting President's personal records must, at the very least, meet a heightened standard of need. Pp. 799–811.

(1) The President's unique duties as head of the Executive Branch come with protections that safeguard his ability to perform his vital functions. The Constitution also guarantees "the entire independence of the General Government from any control by the respective States." *Farmers and Mechanics Sav. Bank of Minneapolis v. Minnesota*, 232 U. S. 516, 521. Marshall's ruling in *Burr*, entrenched by 200 years of practice and this Court's decision in *Nixon*, confirms that federal criminal subpoenas do not "rise to the level of constitutionally forbidden impairment of the Executive's ability to perform its constitutionally mandated functions." *Clinton v. Jones*, 520 U. S. 681, 702–703. But the President claims that state criminal subpoenas necessarily pose a unique threat of impairment and thus require absolute immunity. His categorical argument focuses on three burdens: diversion, stigma, and harassment. Pp. 799–807.

(i) The President contends that complying with state criminal subpoenas would necessarily distract the Chief Executive from his duties. He grounds that concern on *Nixon v. Fitzgerald*, which recognized a President's "absolute immunity from damages liability predicated on his

Syllabus

official acts.” 457 U.S. 731, 749. But, contrary to the President’s suggestion, that case did not hold that distraction was sufficient to confer absolute immunity. Indeed, the Court expressly rejected immunity based on distraction alone 15 years later in *Clinton v. Jones*, when President Clinton sought absolute immunity from civil liability for private acts. As the Court explained, *Fitzgerald’s* “dominant concern” was not mere distraction but the distortion of the Executive’s “decisionmaking process.” 520 U.S., at 694, n. 19. The prospect that a President may become “preoccupied by pending litigation” did not ordinarily implicate constitutional concerns. *Id.*, at 705, n. 40. Two centuries of experience likewise confirm that a properly tailored criminal subpoena will not normally hamper the performance of a President’s constitutional duties.

The President claims this case is different. He believes that he is under investigation and argues that the toll will necessarily be heavier in that circumstance. But the President is not seeking immunity from the diversion occasioned by the prospect of future criminal *liability*. He concedes that he may be investigated while in office. His objection is instead limited to the *additional* distraction caused by the subpoena itself. That argument, however, runs up against the 200 years of precedent establishing that Presidents, and their official communications, are subject to judicial process, see *Burr*, 25 F. Cas., at 34, even when the President is under investigation, see *Nixon*, 418 U.S., at 706. Pp. 801–803.

(ii) The President next claims that the stigma of being subpoenaed will undermine his leadership at home and abroad. But even if a tarnished reputation were a cognizable impairment, there is nothing inherently stigmatizing about a President performing “the citizen’s normal duty of . . . furnishing information relevant” to a criminal investigation. *Branzburg v. Hayes*, 408 U.S. 665, 691. Nor can the risk of association with persons or activities under criminal investigation absolve a President of such an important public duty. The consequences for a President’s public standing will likely increase if he is the one under investigation, but the President concedes that such investigations are permitted under Article II and the Supremacy Clause. And the receipt of a subpoena would not seem to categorically magnify the harm to the President’s reputation. Additionally, in the grand jury context longstanding secrecy rules aim to prevent the very stigma the President anticipates. Pp. 803–804.

(iii) Finally, the President argues that subjecting Presidents to state criminal subpoenas will make them “easily identifiable target[s]” for harassment. *Fitzgerald*, 457 U.S., at 753. The Court rejected a nearly identical argument in *Clinton*, concluding that the risk posed by harassing civil litigation was not “serious” because federal courts have the

Syllabus

tools to deter and dismiss vexatious lawsuits. 520 U. S., at 708. Harassing state criminal subpoenas could, under certain circumstances, threaten the independence or effectiveness of the Executive. But here again the law already seeks to protect against such abuse. First, grand juries are prohibited from engaging in “arbitrary fishing expeditions” or initiating investigations “out of malice or an intent to harass,” *United States v. R. Enterprises, Inc.*, 498 U. S. 292, 299, and federal courts may intervene in state proceedings that are motivated by or conducted in bad faith. Second, because the Supremacy Clause prohibits state judges and prosecutors from interfering with a President’s official duties, any effort to manipulate a President’s policy decisions or to retaliate against a President for official acts through issuance of a subpoena would be an unconstitutional attempt to “influence” a superior sovereign “exempt” from such obstacles, see *McCulloch v. Maryland*, 4 Wheat. 316, 417. And federal law allows a President to challenge any such allegedly unconstitutional influence in a federal forum. Pp. 804–807.

(2) A state grand jury subpoena seeking a President’s private papers need not satisfy a heightened need standard, for three reasons. First, although a President cannot be treated as an “ordinary individual” when executive communications are sought, *Burr* teaches that, with regard to private papers, a President stands in “nearly the same situation with any other individual.” 25 F. Cas., at 191–192. Second, there has been no showing here that heightened protection against state subpoenas is necessary for the Executive to fulfill his Article II functions. Finally, absent a need to protect the Executive, the public interest in fair and effective law enforcement cuts in favor of comprehensive access to evidence.

Rejecting a heightened need standard does not leave Presidents without recourse. A President may avail himself of the same protections available to every other citizen, including the right to challenge the subpoena on any grounds permitted by state law, which usually include bad faith and undue burden or breadth. When the President invokes such protections, “[t]he high respect that is owed to the office of the Chief Executive . . . should inform the conduct of the entire proceeding, including the timing and scope of discovery.” *Clinton*, 520 U. S., at 707. In addition, a President can raise subpoena-specific constitutional challenges in either a state or a federal forum. As noted above, he can challenge the subpoena as an attempt to influence the performance of his official duties, in violation of the Supremacy Clause. And he can argue that compliance with a particular subpoena would impede his constitutional duties. Pp. 807–810.

941 F. 3d 631, affirmed and remanded.

Syllabus

ROBERTS, C. J., delivered the opinion of the Court, in which GINSBURG, BREYER, SOTOMAYOR, and KAGAN, JJ., joined. KAVANAUGH, J., filed an opinion concurring in the judgment, in which GORSUCH, J., joined, *post*, p. 811. THOMAS, J., *post*, p. 815, and ALITO, J., *post*, p. 825, filed dissenting opinions.

Jay Alan Sekulow argued the cause for petitioner. With him on the briefs were *Stuart J. Roth*, *Jordan Sekulow*, *William S. Consovoy*, and *Patrick Strawbridge*.

Solicitor General Francisco argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Assistant Attorney General Hunt*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Vivek Suri*, *Mark R. Freeman*, and *Gerard J. Sinzdek*.

Carey R. Dunne argued the cause for respondents. With him on the brief were *Christopher Conroy*, *Solomon B. Shinerock*, *James H. Graham*, *Sarah Walsh*, *Allen J. Vickey*, *Caitlin Halligan*, and *Walter Dellinger*.*

*Briefs of *amici curiae* urging reversal were filed for the Christian Family Coalition Florida, Inc., by *Dennis Grossman*; and for the Eagle Forum Education & Legal Defense Fund by *Lawrence J. Joseph*.

Briefs of *amici curiae* urging affirmance were filed for the Commonwealth of Virginia et al. by *Mark R. Herring*, Attorney General of Virginia, *Victoria N. Pearson*, Deputy Attorney General, *Toby J. Heytens*, Solicitor General, *Martine E. Cicconi* and *Michelle S. Kallen*, Deputy Solicitors General, and *Jessica Merry Samuels*, Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Kwame Raoul* of Illinois, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Gurbir Singh Grewal* of New Jersey, *Hector Balderas* of New Mexico, *Ellen F. Rosenblum* of Oregon, and *Bob Ferguson* of Washington; for the American Civil Liberties Union et al. by *David D. Cole*, *Steven R. Shapiro*, *Jennesa Calvo-Friedman*, *Arthur Eisenberg*, and *Christopher Dunn*; for the Electronic Privacy Information Center et al. by *Marc Rotenberg* and *Alan Butler*; for Former Department of Justice Officials by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Ashwin P. Phatak*; for Former Republican Members of Con-

Opinion of the Court

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

In our judicial system, “the public has a right to every man’s evidence.”¹ Since the earliest days of the Republic, “every man” has included the President of the United States. Beginning with Jefferson and carrying on through Clinton, Presidents have uniformly testified or produced documents in criminal proceedings when called upon by federal courts. This case involves—so far as we and the parties can tell—the first *state* criminal subpoena directed to a President. The President contends that the subpoena is unenforceable. We granted certiorari to decide whether Article II and the Supremacy Clause categorically preclude, or require a heightened standard for, the issuance of a state criminal subpoena to a sitting President.

I

In the summer of 2018, the New York County District Attorney’s Office opened an investigation into what it opaquely describes as “business transactions involving multiple individuals whose conduct may have violated state law.” Brief for Respondent Vance 2. A year later, the office—acting on behalf of a grand jury—served a subpoena *duces tecum* (essentially a request to produce evidence) on Mazars USA, LLP, the personal accounting firm of President Donald J. Trump. The subpoena directed Mazars to produce financial records relating to the President and business organizations

gress et al. by *Jamila G. Benkato, Cameron O. Kistler, Justin Florence, Benjamin L. Berwick, and Steven A. Hirsch*; and for Washington State Tax Practitioners by *Dirk Giseburt, pro se*, and for Sean J. Kealy et al. by *James J. Wheaton and Mr. Kealy*, both *pro se*.

Briefs of *amici curiae* were filed for David Boyle by *Mr. Boyle, pro se*; for Claire Finklestein et al. by *Richard W. Painter*; and for Eugene H. Goldberg by *Mr. Goldberg, pro se*.

¹This maxim traces at least as far back as Lord Chancellor Hardwicke, in a 1742 parliamentary debate. See 12 Parliamentary History of England 693 (1812).

Opinion of the Court

affiliated with him, including “[t]ax returns and related schedules,” from “2011 to the present.” App. to Pet. for Cert. 119a.²

The President, acting in his personal capacity, sued the district attorney and Mazars in Federal District Court to enjoin enforcement of the subpoena. He argued that, under Article II and the Supremacy Clause, a sitting President enjoys absolute immunity from state criminal process. He asked the court to issue a “declaratory judgment that the subpoena is invalid and unenforceable while the President is in office” and to permanently enjoin the district attorney “from taking any action to enforce the subpoena.” Amended Complaint in No. 1:19-cv-8694 (SDNY, Sept. 25, 2019), p. 19. Mazars, concluding that the dispute was between the President and the district attorney, took no position on the legal issues raised by the President.

The District Court abstained from exercising jurisdiction and dismissed the case based on *Younger v. Harris*, 401 U.S. 37 (1971), which generally precludes federal courts from intervening in ongoing state criminal prosecutions. 395 F. Supp. 3d 283, 290 (SDNY 2019). In an alternative holding, the court ruled that the President was not entitled to injunctive relief. *Ibid.*

The Second Circuit met the District Court halfway. As to the dismissal, the Court of Appeals held that *Younger* abstention was inappropriate because that doctrine’s core justification—“preventing friction” between States and the Federal Government—is diminished when state and federal actors are already in conflict, as the district attorney and the President were. 941 F. 3d 631, 637, 639 (2019).

²The grand jury subpoena essentially copied a subpoena issued to Mazars in April 2019 by the Committee on Oversight and Reform of the U. S. House of Representatives, which is at issue in *Trump v. Mazars USA, LLP*, 591 U.S. 848 (2020). The principal difference is that the instant subpoena expressly requests tax returns.

Opinion of the Court

On the merits, the Court of Appeals agreed with the District Court’s denial of a preliminary injunction. Drawing on the 200-year history of Presidents being subject to federal judicial process, the Court of Appeals concluded that “presidential immunity does not bar the enforcement of a state grand jury subpoena directing a third party to produce non-privileged material, even when the subject matter under investigation pertains to the President.” *Id.*, at 640. It also rejected the argument raised by the United States as *amicus curiae* that a state grand jury subpoena must satisfy a heightened showing of need. The court reasoned that the proposed test, derived from cases addressing privileged Executive Branch communications, “ha[d] little bearing on a subpoena” seeking “information relating solely to the President in his private capacity and disconnected from the discharge of his constitutional obligations.” *Id.*, at 645–646.

We granted certiorari. 589 U. S. 1120 (2019).

Page Proof Pending Publication II

In the summer of 1807, all eyes were on Richmond, Virginia. Aaron Burr, the former Vice President, was on trial for treason.³ Fallen from political grace after his fatal duel with Alexander Hamilton, and with a murder charge pending in New Jersey, Burr followed the path of many down-and-out Americans of his day—he headed West in search of new opportunity. But Burr was a man with outsized ambitions. Together with General James Wilkinson, the Governor of the Louisiana Territory, he hatched a plan to establish a new territory in Mexico, then controlled by Spain.⁴ Both men

³See generally N. Isenberg, *Fallen Founder: The Life of Aaron Burr* 271–365 (2007); J. Smith, *John Marshall: Definer of a Nation* 348–374 (1996); M. Lomask, *Aaron Burr: The Conspiracy and Years of Exile, 1805–1836*, pp. 222–298 (1982).

⁴Wilkinson was secretly being paid by Spain for information and influence. In the wake of Burr’s trial, he was investigated by Congress and

Opinion of the Court

anticipated that war between the United States and Spain was imminent, and when it broke out they intended to invade Spanish territory at the head of a private army.

But while Burr was rallying allies to his cause, tensions with Spain eased and rumors began to swirl that Burr was conspiring to detach States by the Allegheny Mountains from the Union. Wary of being exposed as the principal co-conspirator, Wilkinson took steps to ensure that any blame would fall on Burr. He sent a series of letters to President Jefferson accusing Burr of plotting to attack New Orleans and revolutionize the Louisiana Territory.

Jefferson, who despised his former running mate Burr for trying to steal the 1800 presidential election from him, was predisposed to credit Wilkinson's version of events. The President sent a special message to Congress identifying Burr as the "prime mover" in a plot "against the peace and safety of the Union." 16 Annals of Cong. 39–40 (1807). According to Jefferson, Burr contemplated either the "severance of the Union" or an attack on Spanish territory. *Id.*, at 41. Jefferson acknowledged that his sources contained a "mixture of rumors, conjectures, and suspicions" but, citing Wilkinson's letters, he assured Congress that Burr's guilt was "beyond question." *Id.*, at 39–40.

The trial that followed was "the greatest spectacle in the short history of the republic," complete with a Founder-studded cast. N. Isenberg, *Fallen Founder: The Life of Aaron Burr* 351 (2007). People flocked to Richmond to watch, massing in tents and covered wagons along the banks of the James River, nearly doubling the town's population of 5,000. Burr's defense team included Edmund Randolph and Luther Martin, both former delegates at the Constitutional Convention and renowned advocates. Chief Justice John Marshall, who had recently squared off with the Jefferson administration in *Marbury v. Madison*, 1 Cranch 137 (1803),

later court-martialed. But he was acquitted for want of evidence, and his duplicity was not confirmed until decades after his death, when Spanish archival material came to light.

Opinion of the Court

presided as Circuit Justice for Virginia. Meanwhile Jefferson, intent on conviction, orchestrated the prosecution from afar, dedicating Cabinet meetings to the case, peppering the prosecutors with directions, and spending nearly \$100,000 from the Treasury on the five-month proceedings.

In the lead-up to trial, Burr, taking aim at his accusers, moved for a subpoena *duces tecum* directed at Jefferson. The draft subpoena required the President to produce an October 21, 1806 letter from Wilkinson and accompanying documents, which Jefferson had referenced in his message to Congress. The prosecution opposed the request, arguing that a President could not be subjected to such a subpoena and that the letter might contain state secrets. Following four days of argument, Marshall announced his ruling to a packed chamber.

The President, Marshall declared, does not “stand exempt from the general provisions of the constitution” or, in particular, the Sixth Amendment’s guarantee that those accused have compulsory process for obtaining witnesses for their defense. *United States v. Burr*, 25 F. Cas. 30, 33–34 (No. 14,692d) (CC Va. 1807). At common law the “single reservation” to the duty to testify in response to a subpoena was “the case of the king,” whose “dignity” was seen as “incompatible” with appearing “under the process of the court.” *Id.*, at 34. But, as Marshall explained, a king is born to power and can “do no wrong.” *Ibid.* The President, by contrast, is “of the people” and subject to the law. *Ibid.* According to Marshall, the sole argument for exempting the President from testimonial obligations was that his “duties as chief magistrate demand his whole time for national objects.” *Ibid.* But, in Marshall’s assessment, those demands were “not unremitting.” *Ibid.* And should the President’s duties preclude his attendance at a particular time and place, a court could work that out upon return of the subpoena. *Ibid.*

Marshall also rejected the prosecution’s argument that the President was immune from a subpoena *duces tecum* because

Opinion of the Court

executive papers might contain state secrets. “A subpoena duces tecum,” he said, “may issue to any person to whom an ordinary subpoena may issue.” *Ibid.* As he explained, no “fair construction” of the Constitution supported the conclusion that the right “to compel the attendance of witnesses[] does not extend” to requiring those witnesses to “bring[] with them such papers as may be material in the defence.” *Id.*, at 35. And, as a matter of basic fairness, permitting such information to be withheld would “tarnish the reputation of the court.” *Id.*, at 37. As for “[t]he propriety of introducing any paper[s],” that would “depend on the character of the paper, not on the character of the person who holds it.” *Id.*, at 34. Marshall acknowledged that the papers sought by Burr could contain information “the disclosure of which would endanger the public safety,” but stated that, again, such concerns would have “due consideration” upon the return of the subpoena. *Id.*, at 37.

While the arguments unfolded, Jefferson, who had received word of the motion, wrote to the prosecutor indicating that he would—subject to the prerogative to decide which executive communications should be withheld—“furnish on all occasions, whatever the purposes of justice may require.” Letter from T. Jefferson to G. Hay (June 12, 1807), in 10 Works of Thomas Jefferson 398, n. (P. Ford ed. 1905). His “personal attendance,” however, was out of the question, for it “would leave the nation without” the “sole branch which the constitution requires to be always in function.” Letter from T. Jefferson to G. Hay (June 17, 1807), in *id.*, at 400–401, n.

Before Burr received the subpoenaed documents, Marshall rejected the prosecution’s core legal theory for treason and Burr was accordingly acquitted. Jefferson, however, was not done. Committed to salvaging a conviction, he directed the prosecutors to proceed with a misdemeanor (yes, misdemeanor) charge for inciting war against Spain. Burr then renewed his request for Wilkinson’s October 21 letter, which

Opinion of the Court

he later received a copy of, and subpoenaed a second letter, dated November 12, 1806, which the prosecutor claimed was privileged. Acknowledging that the President may withhold information to protect public safety, Marshall instructed that Jefferson should “state the particular reasons” for withholding the letter. *United States v. Burr*, 25 F. Cas. 187, 192 (No. 14,694) (CC Va. 1807). The court, paying “all proper respect” to those reasons, would then decide whether to compel disclosure. *Ibid.* But that decision was averted when the misdemeanor trial was cut short after it became clear that the prosecution lacked the evidence to convict.

In the two centuries since the Burr trial, successive Presidents have accepted Marshall’s ruling that the Chief Executive is subject to subpoena. In 1818, President Monroe received a subpoena to testify in a court-martial against one of his appointees. See Rotunda, Presidents and Ex-Presidents as Witnesses: A Brief Historical Footnote, 1975 U. Ill. L. Forum 1, 5. His Attorney General, William Wirt—who had served as a prosecutor during Burr’s trial—advised Monroe that, per Marshall’s ruling, a subpoena to testify may “be properly awarded to the President.” *Id.*, at 5–6. Monroe offered to sit for a deposition and ultimately submitted answers to written interrogatories.

Following Monroe’s lead, his successors have uniformly agreed to testify when called in criminal proceedings, provided they could do so at a time and place of their choosing. In 1875, President Grant submitted to a three-hour deposition in the criminal prosecution of a political appointee embroiled in a network of tax-evading whiskey distillers. See 1 R. Rotunda & J. Nowak, Constitutional Law §7.1(b)(ii), p. 996 (5th ed. 2012) (Rotunda & Nowak). A century later, President Ford’s attempted assassin subpoenaed him to testify in her defense. See *United States v. Fromme*, 405 F. Supp. 578 (ED Cal. 1975). Ford obliged—from a safe distance—in the first videotaped deposition of a President. President Carter testified via the same means in the trial of

Opinion of the Court

two local officials who, while Carter was Governor of Georgia, had offered to contribute to his campaign in exchange for advance warning of any state gambling raids. See Carter's Testimony, on Videotape, Is Given to Georgia Gambling Trial, N. Y. Times, Apr. 20, 1978, p. A20 (Carter recounted that he "rejected the proposition instantly."). Two years later, Carter gave videotaped testimony to a federal grand jury investigating whether a fugitive financier had entreated the White House to quash his extradition proceedings. See Rotunda & Nowak § 7.1(b)(vi), at 997. President Clinton testified three times, twice via deposition pursuant to subpoenas in federal criminal trials of associates implicated during the Whitewater investigation, and once by video for a grand jury investigating possible perjury. See *id.*, § 7.1(c)(viii), at 1007–1008.

The bookend to Marshall's ruling came in 1974 when the question he never had to decide—whether to compel the disclosure of official communications over the objection of the President—came to a head. That spring, the Special Prosecutor appointed to investigate the break-in of the Democratic National Committee Headquarters at the Watergate complex filed an indictment charging seven defendants associated with President Nixon and naming Nixon as an unindicted co-conspirator. As the case moved toward trial, the Special Prosecutor secured a subpoena *duces tecum* directing Nixon to produce, among other things, tape recordings of Oval Office meetings. Nixon moved to quash the subpoena, claiming that the Constitution provides an absolute privilege of confidentiality to all presidential communications. This Court rejected that argument in *United States v. Nixon*, 418 U. S. 683 (1974), a decision we later described as "unequivocally and emphatically endors[ing] Marshall's" holding that Presidents are subject to subpoena. *Clinton v. Jones*, 520 U. S. 681, 704 (1997).

The *Nixon* Court readily acknowledged the importance of preserving the confidentiality of communications "between high Government officials and those who advise and assist

Opinion of the Court

them.” 418 U. S., at 705. “Human experience,” the Court explained, “teaches that those who expect public dissemination of their remarks may well temper candor with a concern for appearances and for their own interests to the detriment of the decisionmaking process.” *Ibid.* Confidentiality thus promoted the “public interest in candid, objective, and even blunt or harsh opinions in Presidential decisionmaking.” *Id.*, at 708.

But, like Marshall two centuries prior, the Court recognized the countervailing interests at stake. Invoking the common law maxim that “the public has a right to every man’s evidence,” the Court observed that the public interest in fair and accurate judicial proceedings is at its height in the criminal setting, where our common commitment to justice demands that “guilt shall not escape” nor “innocence suffer.” *Id.*, at 709 (internal quotation marks and alteration omitted). Because these dual aims would be “defeated if judgments” were “founded on a partial or speculative presentation of the facts,” the *Nixon* Court recognized that it was “imperative” that “compulsory process be available for the production of evidence needed either by the prosecution or the defense.” *Ibid.*

The Court thus concluded that the President’s “generalized assertion of privilege must yield to the demonstrated, specific need for evidence in a pending criminal trial.” *Id.*, at 713. Two weeks later, President Nixon dutifully released the tapes.

III

The history surveyed above all involved *federal* criminal proceedings. Here we are confronted for the first time with a subpoena issued to the President by a local grand jury operating under the supervision of a *state* court.⁵

⁵ While the subpoena was directed to the President’s accounting firm, the parties agree that the papers at issue belong to the President and that Mazars is merely the custodian. Thus, for purposes of immunity, it is functionally a subpoena issued to the President.

Opinion of the Court

In the President's view, that distinction makes all the difference. He argues that the Supremacy Clause gives a sitting President absolute immunity from state criminal subpoenas because compliance with those subpoenas would categorically impair a President's performance of his Article II functions. The Solicitor General, arguing on behalf of the United States, agrees with much of the President's reasoning but does not commit to his bottom line. Instead, the Solicitor General urges us to resolve this case by holding that a state grand jury subpoena for a sitting President's personal records must, at the very least, "satisfy a heightened standard of need," which the Solicitor General contends was not met here. Brief for United States as *Amicus Curiae* 26, 29.

A

We begin with the question of absolute immunity. No one doubts that Article II guarantees the independence of the Executive Branch. As the head of that branch, the President "occupies a unique position in the constitutional scheme." *Nixon v. Fitzgerald*, 457 U.S. 731, 749 (1982). His duties, which range from faithfully executing the laws to commanding the Armed Forces, are of unrivaled gravity and breadth. Quite appropriately, those duties come with protections that safeguard the President's ability to perform his vital functions. See, e.g., *ibid.* (concluding that the President enjoys "absolute immunity from damages liability predicated on his official acts"); *Nixon*, 418 U.S., at 708 (recognizing that presidential communications are presumptively privileged).

In addition, the Constitution guarantees "the entire independence of the General Government from any control by the respective States." *Farmers and Mechanics Sav. Bank of Minneapolis v. Minnesota*, 232 U.S. 516, 521 (1914). As we have often repeated, "States have no power . . . to retard, impede, burden, or in any manner control, the operations of the constitutional laws enacted by Congress." *McCulloch*

Opinion of the Court

v. *Maryland*, 4 Wheat. 316, 436 (1819). It follows that States also lack the power to impede the President’s execution of those laws.

Marshall’s ruling in *Burr*, entrenched by 200 years of practice and our decision in *Nixon*, confirms that *federal* criminal subpoenas do not “rise to the level of constitutionally forbidden impairment of the Executive’s ability to perform its constitutionally mandated functions.” *Clinton*, 520 U. S., at 702–703. But the President, joined in part by the Solicitor General, argues that *state* criminal subpoenas pose a unique threat of impairment and thus demand greater protection. To be clear, the President does not contend here that *this* subpoena, in particular, is impermissibly burdensome. Instead he makes a *categorical* argument about the burdens generally associated with state criminal subpoenas, focusing on three: diversion, stigma, and harassment. We address each in turn.

¹
The President’s primary contention, which the Solicitor General supports, is that complying with state criminal subpoenas would necessarily divert the Chief Executive from his duties. He grounds that concern in *Nixon v. Fitzgerald*, which recognized a President’s “absolute immunity from damages liability predicated on his official acts.” 457 U. S., at 749. In explaining the basis for that immunity, this Court observed that the prospect of such liability could “distract a President from his public duties, to the detriment of not only the President and his office but also the Nation that the Presidency was designed to serve.” *Id.*, at 753. The President contends that the diversion occasioned by a state criminal subpoena imposes an equally intolerable burden on a President’s ability to perform his Article II functions.

But *Fitzgerald* did not hold that distraction was sufficient to confer absolute immunity. We instead drew a careful analogy to the common law absolute immunity of judges and prosecutors, concluding that a President, like those officials,